

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle, and Last name) DEFENDANT

ORDER TO SEAL PURSUANT TO ACT 531 OF 1993 ACA§16-93-1201,
Et. Seq. and ACT 1460 OF 2013 A.C.A.16-90-1401, Et. Seq.

Before the Court is the Petition of the Defendant to seal his/her record.
The Court finds and orders as follows:

1. The defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of _____

A Class ____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.
2. The defendant was convicted of the offense(s) of: _____, in violation of A.C.A. § _____, on the _____ day of _____, _____.
3. The offense(s) listed above is/are a target offense as defined in A.C.A. §16-93-1202(10)(A)(i) or (ii) and are not violent or sexual offenses as defined in A.C.A. §16-93-1202(10)(A)(iii) or (iv).

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4. The Defendant was sentenced under Act 531 of 1993, as codified at A.C.A. §16-93-1201, et seq.
5. The Defendant has successfully completed:
- ☐ A term in the Arkansas Department of Corrections with judicial transfer to the Arkansas Department of Community Corrections; or
- ☐ A suspended imposition of sentence, with or without supervision; or
- ☐ Supervised or unsupervised probation; or
- ☐ A term in the county jail for a misdemeanor committed after January 1, 2007.
6. The Defendant has no more than one (1) prior felony conviction and the prior conviction was not for an offense listed in A.C.A. §16-93-1207(b)(1).
7. The Defendant has satisfactorily fulfilled the terms and conditions of probation or has been released by the court prior to that time.
8. The defendant ☐ **HAS** or ☐ **HAS NOT** been rehabilitated.
9. ☐ Defendant has no pending felony charges in any state or federal court; or
- ☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:
- _____
- _____
10. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A. §16-90-1419.

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- ☐ A term in the county jail for a misdemeanor committed after January 1, 2007.
6. The Defendant has no more than one (1) prior felony conviction and the prior conviction was not for an offense listed in A.C.A. §16-93-1207(b)(1).
7. The Defendant has satisfactorily fulfilled the terms and conditions of probation or has been released by the court prior to that time.
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9. ☐ Defendant has no pending felony charges in any state or federal court; or
- ☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:
- _____
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10. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A. §16-90-1419.

11. IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to Seal the above referenced conviction(s) pursuant to A.C.A. §16-93-1201, et seq. should be, and hereby is GRANTED.

12. IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information Center, the Administrative Office of the Courts, the prosecuting attorney, the arresting agency, and both the city attorney and District Court Clerk, if applicable. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER IDENTIFICATION OF THE DEFENDANT IN THE STATE AND NATIONAL RECORD SYSTEMS

Race _____	Arrest Tracking Number _____
Sex _____	SID No. _____
DOB _____	FBI No. (if known) _____

11. IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to Seal the above referenced conviction(s) pursuant to A.C.A. §16-93-1201, et seq. should be, and hereby is GRANTED.

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